

HCS HB 3009 -- NONPROFIT PHARMACIES

SPONSOR: Hausman

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Standing Committee on Professional Registration and Licensing by a vote of 20 to 0. Voted "Do Pass" by the Standing Committee on Rules-Legislative by a vote of 12 to 0.

The following is a summary of the House Committee Substitute for HB 3009.

This bill gives the Missouri Board of Pharmacy the authority to waive compliance with any Missouri rule or regulation for a pharmacy licensed in this state when the pharmacy is dispensing, shipping, or delivering prescription drugs into another state or United States territory that is experiencing a declared state disaster or emergency, provided that:

(1) The pharmacy is a licensed pharmacy in good standing under this Chapter and is authorized to ship prescription drugs into the state or territory in question;

(2) The pharmacy is responding to an active declared state disaster or emergency;

(3) The pharmacy complies with all emergency rules and regulations for pharmacies and nonprofit pharmacies established by the state or territory for the duration of the disaster period;

(4) The pharmacy complies with all applicable Federal laws and regulations; and

(5) The waiver applies only to prescription drugs dispensed, shipped, or delivered to residents or health care facilities located within the geographic area specified in the declared state disaster or emergency.

The Board can promulgate rules to implement these provisions.

This bill is similar to SB 1640 (2026).

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPONENTS: Supporters say that this will help people when they have been hit with a natural disaster and have lost their medicine. This bill would make sure people do not have a lapse in their medicine due to something that is out of their control. Governor Kehoe did this last year through an executive order.

Testifying in person for the bill were Representative Hausman and Rx Outreach.

OPPONENTS: There was no opposition voiced to the committee.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.